

15CV3836

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Kenneth Betts

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SDNY PRO SE OFFICE

2015 MAY -8 A 9:09

(In the space above enter the full name(s) of the plaintiff(s).)

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)Jury Trial: ☒ Yes ☐ No
(check one)

-against-

Ivan Rodriquez

Kelthlyn Frederick

Glenda Wajer

Sgt. R. Morrison

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Kenneth Betts
 ID # #14R0087
 Current Institution Orleans Correctional Facility
 Address 3531 Gaines Basion Road
Albion, New York 14411

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name Detective Ivan Rodriquez Shield # 7574
 Where Currently Employed NYC Police Dept. Manhattan North
 Address One Police Plaza, NY 10038

Defendant No. 2 Name Detective Kelthlyn Frederick Shield # 5989
Where Currently Employed NYC Police, Manhattan North
Address One Police Plaza, New York, NY 10038

Defendant No. 3 Name Detective Glenda Wajer Shield # 7574
Where Currently Employed NYC Police, Manhattan North
Address One Police Plaza
New York, New York 10038

Defendant No. 4 Name Sgt. R. Morrison Shield # unknown
Where Currently Employed NYC Police Dept. Manhattan North
Address One Police Plaza
New York, New York 10038

Defendant No. 5 Name _____ Shield # _____
Where Currently Employed _____
Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

- A. In what institution did the events giving rise to your claim(s) occur?
N/A
- B. Where in the institution did the events giving rise to your claim(s) occur?
N/A
- C. What date and approximate time did the events giving rise to your claim(s) occur?
On December 7th, 2012, in the morning in the city
of New York.

D. Facts: On the afternoon of December 7th, 2012, Plaintiff was approached by two plain clothes detectives in front of the Saint Nicolas

What happened to you?

apartment building 277/West 127th Street. When they approached me showing no identification such as a badge or I.D., they yelled " put not knowing who they were and plaintiff fearing for his own safety,

he tried to run, hoping to put a safe distance between himself and these

Who did what?

strangers. As he turned his back to flee, he was tackled by one of the defendants who after he was pinned to ground, two more men

Was anyone else involved?

approached and each was pulling an arm behind his back while assaulting his face with their pistols. As plaintiff was pleading and begging

them to not force his hands behind his back, his right shoulder and elbow popped, then went into excruciating pain, which they then

carried him to the street yelling and screaming. After he was put in handcuffs, unable to defend himself from the onslaught of punches

being thrown, he yelled that and he quote, "Owww, my---please stop, I have H.I.V.". As soon as Plaintiff said that he had HIV, the assault

Who else saw what happened?

stopped for about 10 seconds. In that ten seconds since plaintiff plaintiff made his statement, defendants put on gloves before

continuing to assault me. Defendants pulled him up with no assistance

the handcuffs, which set shooting pain through his right

shoulder/arm. After he was hauled off of the ground they walked him

[continue on attached page 3A]

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. Defendant's arm, back and head were injured in the assault by the above-named defendants.

Further, defendant shoulder and arm popped out of the socket and as a results, he sustained serious and prolonged injury in that he has developed as severe deficit in his right arm.

It is so severe that he virtually cannot his right hand and he has had to learn to write with his left hand. His injury is permanent as results of defendant's actions.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A.. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ____ No X

FACTS:

with his hands handcluffed behind his back and lifted straight up so his upper torso was parallel with the ground. When he got to the van an officer pulled by handcluffs downward, allowing his body to go back to a normal upright position. The officer then told him to step up into the vehicle. When his left foot was planted on the step and he was bringing his right foot onto the step, when someone slammed him into the ground, onto his back. Defendants closed the side entrance to the van and told him to "stop fucking playing", to which he responded "are you serious". Then defendants picked him up as he was screaming in pain about his arm and pushed him up as he was screaming in pain about his arm and pushed him into the back of a police transport van where he fell into other people that were arrested and taken to the precinct. Paramedics were waiting at the precinct where the police told him that they would not allow him medical attention until he volunteered for a strip search.

He was taken to a cell for the strip search where he was told to take off my clothes. When he had his socks and pants off the officer said "jurry the fuck up" and after he said it an officer ran in and started to punch in his face and stomach with hard force. He was hit around twenty times in the face. His lips and gums were split and beleeding, along with welts/ all over his head.

After defendants beat him up they sprayed his face with mace, took his clothes and left him on the ground naked in the cell. Later they gave him his clothes back and put him on a stretcher and they proceeded to take him to the Harlem Hospital. When plaintiff arrived at Harlem Hospital, he was taken to an examination room where he was questioned by the police. The nurse came into the room and asked what was wrong with him. He told her that his right shoulder/arm were in extreme pain and he heard something pop when he tackled to the ground. He followed that with telling her his face and skull were throbbing and had visual lacerations from the punches thrown from the officers. After forty five minutes he was taken for x-rays, where I was told they couldn't figure out what was wrong with his shoulder. Plaintiff was prescribed pain medicine by the doctor but never received it because he was taken to the court building. He was told by the doctor that he needed to go back for follow-up appointments but he was never allowed due to his incarceration.

When he to the Court building the captain okn duty asked what exactly happened to him. The police officers that brought him in told the captain that "he slipped and fellP getting into the van. The captain looked at his face and asked him it " he was sure this is what happened?"and he said yes because when he was on his way to the Court building the officers in the squad car told him that if he has any type of injury he

would be sent back to the precinct where they will have "FUN" with him. Plaintiff told the captain that out of fear for his safety and well-being. Plaintiff was held for four hours before he appeared in front of a Judge. His lawyers asked the Judge if he could take pictures of his injuries, the Judge said: "Yes", and he (the Attorney) proceeded to take pictures of his whole head, the inside of his mouth, his right shoulder, right arm, right and left wrist and his upper torso.

Soon after he was remanded by the Judge, then, taken to the Manhattan Holding Center the Tombs.

During his time there his body was in extreme pain due to lack of medical attention. When he was eventually seen by the medical staff they immediately gave him pain medication and asked him why he wasn't given this at the Harlem Hospital. At the Tombs I plaintiff had to attend sick call everyday to see what was wrong with his arm, which they ended up just giving him a sling to wear on his right arm on the first day and nothing else through the rest of his sick call visits. When he finally was seen by an orthopedic specialist he checked his right arm and concluded that he needed immediate physical therapy and more x-rays that were done at the Bellevue Hospital. When he arrived at Bellevue hospital they took x-rays and requested that he get a MRI. He received the x-ray and MRI over the course of a year and it took them that time to prescribe him medicine for his severe migraine which he never had until the day he was assaulted.

When he saw the neurologist, she ordered a MRI for his head and then prescribed him migraine medicine.

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ____ No ____ Do Not Know ____

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ____ No ____ Do Not Know ____

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ____ No ____

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ____ No ____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: Because this matter arose due to action taken by the New York City Police Officers during an illegal stop and arrest and did not occur in a jail or prison.

2. If you did not file a grievance but informed any officials of your claim, state who you informed,

when and how, and their response, if any: _____

- G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. Plaintiff file a formal complaint with the New York City Police Department's Internal Affairs Unit

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). Plaintiff wants the court to determine that the defendant herein violated his civil rights under Federal Law. Compensatory damages for each defendant is \$50,000.00 and punitive damages of \$75,000.00 for each defendant herein.

VI. Previous lawsuits:

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ____ No X

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ____ No X

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 29th day of April, 2015.

Signature of Plaintiff _____

Inmate Number _____

Institution Address Orleans Correctional Facility
3531 Gaines Basin Road
Albion, New York 14411

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 29th day of April, 2015, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff: ~~DeHS~~ Kenneth

ORLEANS CORRECTIONAL FACILITY

3531 Gaines Basin Road
Albion, New York 14411-9199

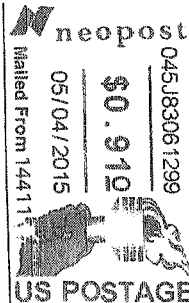
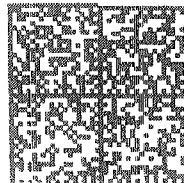
NAME Kenneth Betts

DIN: #14R0087

CORRECTIONAL



ORLEANS



*Pro Se
Jen B
1/1/15*

Clerk
United States District Court
Southern District of New York
The Daniel Patrick Moynihan
United States Courthouse
500 Pearl Street
New York, New York 10007-1312

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U.S. DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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(PRIVILEGED CORRESPONDENCE)

10007*1330 C014

